

From: [Samuel Uanserume](#)
To: [Rachel Dickon](#); [Samuel Uanserume](#)
Subject: FW: Docket 19-05 Detention Comments Southern Counties Express
Date: Tuesday, October 22, 2019 4:28:42 PM
Attachments: [image001.png](#)
[RE KCL_DET_NEED OF PAYMENT_SOUTHERN COUNTIES EXPRESS_wk43.msg](#)
[RE APL_NO APPOINTMENTS 821_screenshot.msg](#)
[RE ONE - NO APPOINTMENTS AT TRAPAC 1018.msg](#)
[RE ONE - VERY LIMITED APPOINTMENTS AT YTI 109.msg](#)
[RE EMPTIES ON PER DIEM.msg](#)
[RE EMPTIES ON PER DIEM.msg](#)
[HTA_Member Letter_FMC_Interperative DD Rule.docx](#)

-Samuel Uanserume

From: Cesar Garcia <CGarcia@scexpress.com>
Sent: Tuesday, October 22, 2019 4:21 PM
To: Secretary <secretary@FMC.gov>
Subject: Docket 19-05 Detention Comments Southern Counties Express

Good Afternoon FMC,

Attached you will find per diem communication between Southern Counties Express and steamship lines in regards to detention and unfair practices by the steamship lines.

Respectfully,



Cesar Garcia
CGarcia@scexpress.com

SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.scexpress.com>

October 22, 2019

Federal Maritime Commission
Rachel Dickon
Commission Secretary
secretary@fmc.gov

Re: SUPPORT: Interpretive Rule on Detention and Demurrage under the Shipping Act

Honorable Commissioners:

On behalf of **Southern Counties Express**, a member of the Harbor Trucking Association, we first wanted to thank the commission for taking time to address this important issue. It has been a growing concern of the ours that we have been the victim of unreasonable business practices that have undermined the once well intended practice of using detention and demurrage to incentivize an expedient movement of cargo. Now, I find myself the subject of unreasonable charges and saddled with the expensive administrative burden of proving that I am not at fault for charges I never agreed to and am not responsible for. These unreasonable practices have caused great financial distress to my company, while serving as a profit center for the entities who charge detention and demurrage. The leadership of the Federal Maritime Commission (FMC) on this important issue has been greatly appreciated by the motor carrier community, and we strongly urge you to move forward with adopting the interpretive rule to help end the current abuses that result from antiquated rules regarding detention and demurrage.

1. The proposed rule provides important guidance to the maritime industry regarding how the FMC will evaluate the reasonableness of port demurrage and container charges.
 - There is a need for FMC guidance to address serious concerns over ocean carrier and marine terminal demurrage/detention charges as demonstrated in the Fact-Finding Investigation and the Petition filed by the Coalition for Fair Port Practices.
 - The proposal identifies key principles and examples of reasonable practices that will be considered by the FMC in the context of a 10(d) claim as to demurrage/detention, while providing the necessary flexibility to account for differing factual circumstances (e.g. rule provides a non-exhaustive list of principles but is non-binding).
 - The proposal will greatly benefit the US maritime industry by promoting efficient cargo handling and delivery, improving commercial fairness in the assessment of the charges, while also reducing confusion and disputes.
2. The Interpretive Rule seeks to align demurrage/detention rules and practices with their intended purpose of incentivizing efficient cargo handling and delivery.
 - The Incentive Principle is supported by the law and Shipping Act policies.
 - Support suspension of charges (or at least extension of free time) where efficiency incentives are not able to be achieved.
 - Appropriate for cargo interests to fulfill their responsibilities to receive and pick up cargo but no need for advance payment of all charges where credit has been agreed to between shipper and ocean carrier. Also, pre-payment should not apply to disputed charges.
3. Comments on Specific Aspects of the Interpretive Rule

INSERT LOGO

- Scope of the Rule: Rule broadly applies to all charges applied to use of marine terminal space or shipping containers, except freight, and to containerized trade only.
- Cargo Availability. Under the current rules and the Shipping Act, cargo is deemed available when it is unloaded from the vessel. However, in this case the cargo is never truly available until later. With cargo being held for holds by customs, being inaccessible because the terminal has kept it in a “close area”, or, in the more modern terminal operations, the container not having an available appointment, cargo is rarely, if ever, available when the free-time clock starts. Knowing when cargo is actually available will help ensure that pickup is timely scheduled—reducing idle and wasted hours truckers spend waiting for containers to become available. Free time should be tied to actual cargo availability and not vessel arrival since you cannot incentivize efficient cargo pickup if the cargo may not yet be available (i.e. held in a closed yard or location at the terminal). Free time should be stopped if container is no longer available. Important to consider the workings of terminal appointment systems in evaluating reasonableness—should be some minimum period of appointment availability.
- FMC correctly determined that the manner in which notice of cargo availability is communicated is a critical aspect of reasonableness. Notice must be timely and readily accessible to the contracting party or its designee, must provide clear information as to when and where cargo may be retrieved, and “push notices” are favored.
- Government Inspections. Need input here as to which of the 3 offered approaches makes the most sense: (1) waiver or extension of free time; (2) cap on the amount of charges that may accrue; or (3) no escalation of demurrage/detention during inspections. Option 1 seems the most commercially-oriented but understand that parties may see benefits in the other proposals.
- Dispute Resolution. FMC has properly identified the types of policies, rules and practices that would greatly improve dispute resolution processes. Defined time frames should apply to both filing and responding to claims must operate to facilitate resolution of disputes and not unreasonably cut off claims.
- Billing. Agree with FMC that demurrage/detention invoices must include adequate information to allow a shipper/trucker to audit and contest the charges. Favor invoicing that is tied to contractual relationships rather than ownership or control of the assets, i.e. ocean carriers should continue to bill their customers directly, rather than terminals billing for demurrage, since parties should be able to negotiate demurrage terms in their service contracts.
- Evidentiary guidance. Support FMC proposal encouraging the identification of information that can facilitate dispute resolution, such as appointment logs and trouble tickets.
- Terminology. Support FMC proposal for the use of more consistent demurrage and detention terminology in carrier and terminal tariffs, including that the most common understanding of these terms is based on the source of the charge (land for demurrage) and (container for detention) as opposed to the location (inside or outside the terminal).

Here are a few examples of unfair per diem charges to the motor carrier.

INSERT LOGO

- Terminals do not have appointments to receive an empty container, steamship line holds the motor carrier responsible until unit has a secured appointment and terminates the container. UIIA violation, no agreement in place.
- Terminal suddenly close gates to steamship line, steamship has no other return location available and charges per diem to motor carrier for not returning units.
- Empties only being received as “dual transaction” when the motor carrier has no load to pull from the terminal. Steamship line charges motor carrier for not returning the empty and pulling a load.
- Gates closed 1st shift but open for 2nd shift, steamship lines expect motor carriers to terminate all their empties on a half a shift basis in an appointment system world.

4. FMC should proceed to adopt its proposed interpretive rule promptly.

Should you have any questions, I can be reached at uiia@scexpress.com

Respectfully,

Southern Counties Express

Dear SCE

Please note, APL Equipment doesn't stop the clock.

Thank you

Best Regards,

cid:image003.png@01D57DC1.FC11C200

From: PSW Equipment <PSW.equipment@apl.com>
Sent: Monday, October 21, 2019 9:37 AM
To: Oscar Caballero <OCaballero@scexpress.com>
Cc: Equip_Control <equip_control@scexpress.com>; LGB EQUIPMENT <LGB.EQUIPMENT@apl.com>
Subject: RE: APL NO APPOINTMENTS 8/21 **screenshot*

cid:image003.png@01D57DC1.FC11C200

APL,

Please **stop the clock** on all below units as SCE will not be responsible for any per diem.

TRAILER	OWNER	SIZE
TLLU2764895	APL	20 STD
ECMU1904714	APL	20 STD
CMAL8327020	APL	20 STD
CMAL8325296	APL	40 STD
TLU4865679	APL	40 STD
APZU4416398	APL	40 STD
APZU4748849	APL	40 STD
CLHU4737364	APL	40 STD
CMAL8092263	APL	40 STD
CMAL8349625	APL	40 STD
APZU4571719	APL	40 STD
APZU4505552	APL	40 STD
APZU4705220	APL	40 STD
APZU4807746	APL	40 STD
CMAL8178958	APL	40 STD
CMAL8138863	APL	40 STD
XINU4051438	APL	40 STD
APZU4255590	APL	40 STD
ECMU4455160	APL	40 STD
TCNUJ5200115	APL	40HC
CMU4707070	APL	40HC
APHU7273894	APL	40HC
SEGU4146754	APL	40HC

TCNU5276717	APL	40HC
TGHU8866663	APL	40HC
TCNU1659045	APL	40HC
ECMU969539	APL	40HC
TCNU9149069	APL	40HC
CMAU4338412	APL	40HC
SEGU4828780	APL	40HC
CMAU5526100	APL	40HC
APHU6865121	APL	40HC
APHU6488134	APL	40HC
TCNU3569172	APL	40HC
ECMU9645775	APL	40HC
TCNU9542836	APL	40HC
TGHU6316190	APL	40HC
ECMU4412256	APL	40HC
CMAU6007389	APL	40HC
UNIU5034421	APL	40HC
APHU6979253	APL	40HC
APHU6514472	APL	40HC
BMOU6139090	APL	40HC
CMAU5674324	APL	40HC
CMAU7373269	APL	40HC
CMAU7555387	APL	40HC
FCIU8167458	APL	40HC
TCNU6544080	APL	40HC
TCNU8227697	APL	40HC
TLLU5023005	APL	40HC
UETU5000598	APL	40HC
CMAU7090850	APL	40HC
TGHU9509465	APL	40HC
CMAU6297987	APL	40HC
ECMU9893555	APL	40HC
TLLU4326516	APL	40HC
CMAU5703171	APL	40HC
TLLU4894702	APL	40HC
CMAU7305496	APL	40HC
TGBU5289885	APL	40HC
APHU7156990	APL	40HC
CMAU5864432	APL	40HC
TCNU9987267	APL	45
CAIU5849332	APL	45
TCNU9975522	APL	45
ECMU8163104	APL	45
CAIU5844285	APL	45
CAIU5849008	APL	45
DRYU4523147	APL	45
ECMU8076925	APL	45
TCNU9974629	APL	45
TDRU4584352	APL	45



Kindly confirm, thank you.

Best Regards,



Oscar Caballero
Equipment
oscarcaballero@sceexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
2803 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2161
<http://www.sceexpress.com>

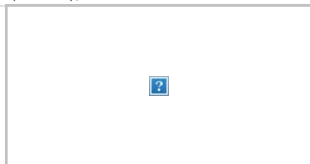
From: [ytilayardocu](#)
To: [Cesar Garcia](#); "NA EQCSouthWest"
Cc: [Salvador Aguilar](#)
Subject: RE: EMPTIES ON PER DIEM
Date: Tuesday, October 8, 2019 1:37:28 PM
Attachments: [image001.png](#)
[image002.png](#)
[image003.jpg](#)
[image004.png](#)
[image005.jpg](#)
[image006.png](#)
[image007.jpg](#)
[image008.png](#)
[image009.jpg](#)
[image010.png](#)
[image011.jpg](#)
[image012.png](#)
[image013.jpg](#)
[image014.png](#)
[image015.jpg](#)

Cesar,
More open time slots will become available, please continue to monitor.
Thank you for contacting YTI Customer Service, we value your business.

Kind Regards,
Jenny De La Torre – Yard Dept
Yusen Terminals, Inc
Ph: 310.548.8209
Fax: 310.548.7175

From: Cesar Garcia
Sent: Tuesday, October 8, 2019 10:32 AM
To: ytilayardocu ; 'NA EQCSouthWest'
Cc: Salvador Aguilar
Subject: RE: EMPTIES ON PER DIEM
EXTERNAL EMAIL: Do not click any links or open any attachments unless you trust the sender and know the content is safe.

ONE- it is only 10:30am and no appointments available at YTI. We will advise our mutual customers that per the communication below we cannot terminate your empties. SCE will not be responsible for any per diem. Thank you all.
Respectfully,



Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.scexpress.com>

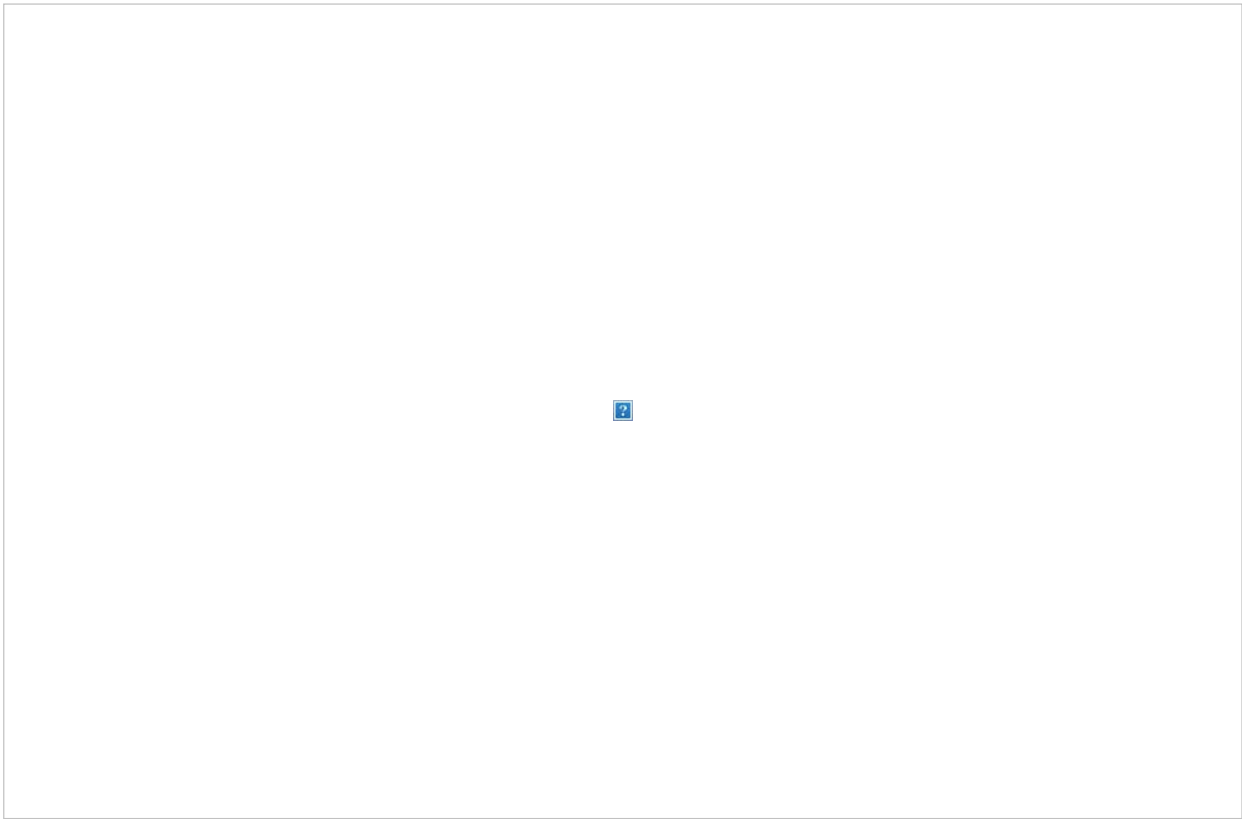
From: ytilayardocu <ytilayardocu@yti.com>
Sent: Tuesday, October 8, 2019 10:29 AM
To: Cesar Garcia <CGarcia@scexpress.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>
Cc: Salvador Aguilar <salvador@scexpress.com>
Subject: RE: EMPTIES ON PER DIEM
At this time we are at max capacity. At your discretion please continue to

monitor as more time slots become available, thank you.
Thank you for contacting YTI Customer Service, we value your business.

Kind Regards,
Jenny De La Torre – Yard Dept
Yusen Terminals, Inc
Ph: 310.548.8209
Fax: 310.548.7175

From: Cesar Garcia <CGarcia@scexpress.com>
Sent: Tuesday, October 8, 2019 10:23 AM
To: ytilayardocu <ytilayardocu@yti.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>
Cc: Salvador Aguilar <salvador@scexpress.com>
Subject: RE: EMPTIES ON PER DIEM
EXTERNAL EMAIL: Do not click any links or open any attachments unless you trust the sender and know the content is safe.

YTI, as of 10:20 there are no appointments still.



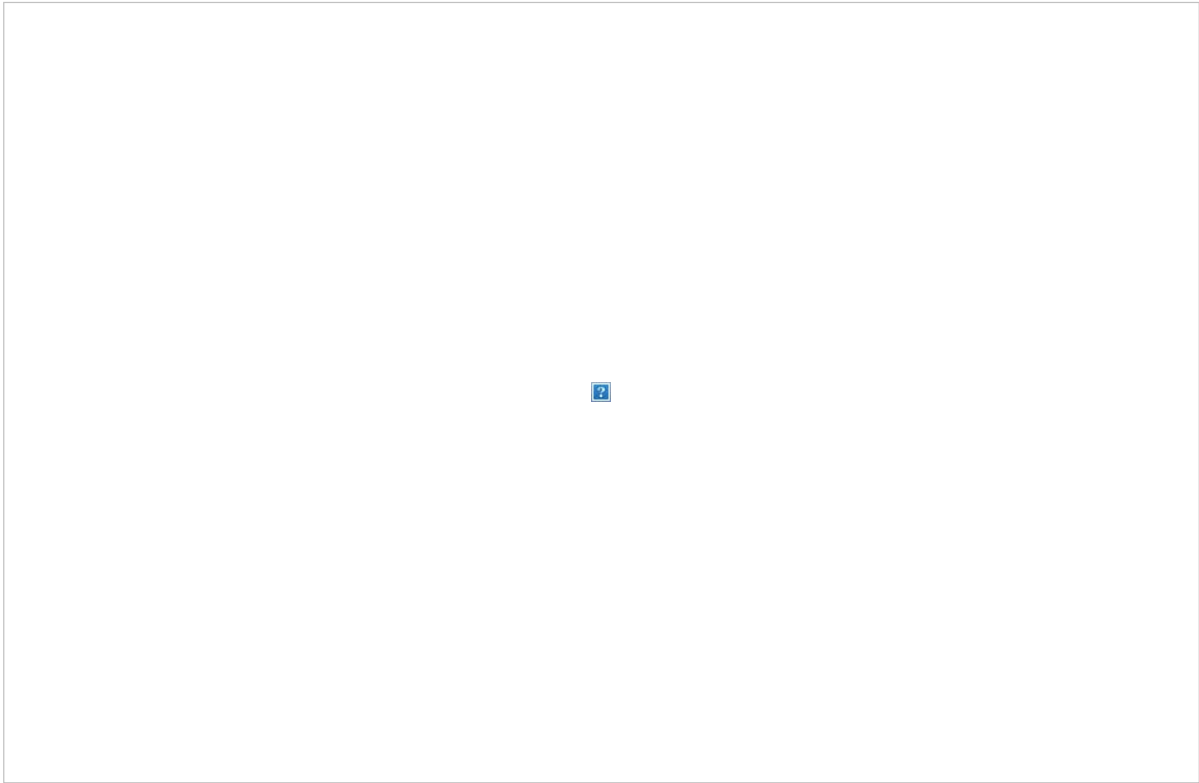
Respectfully,



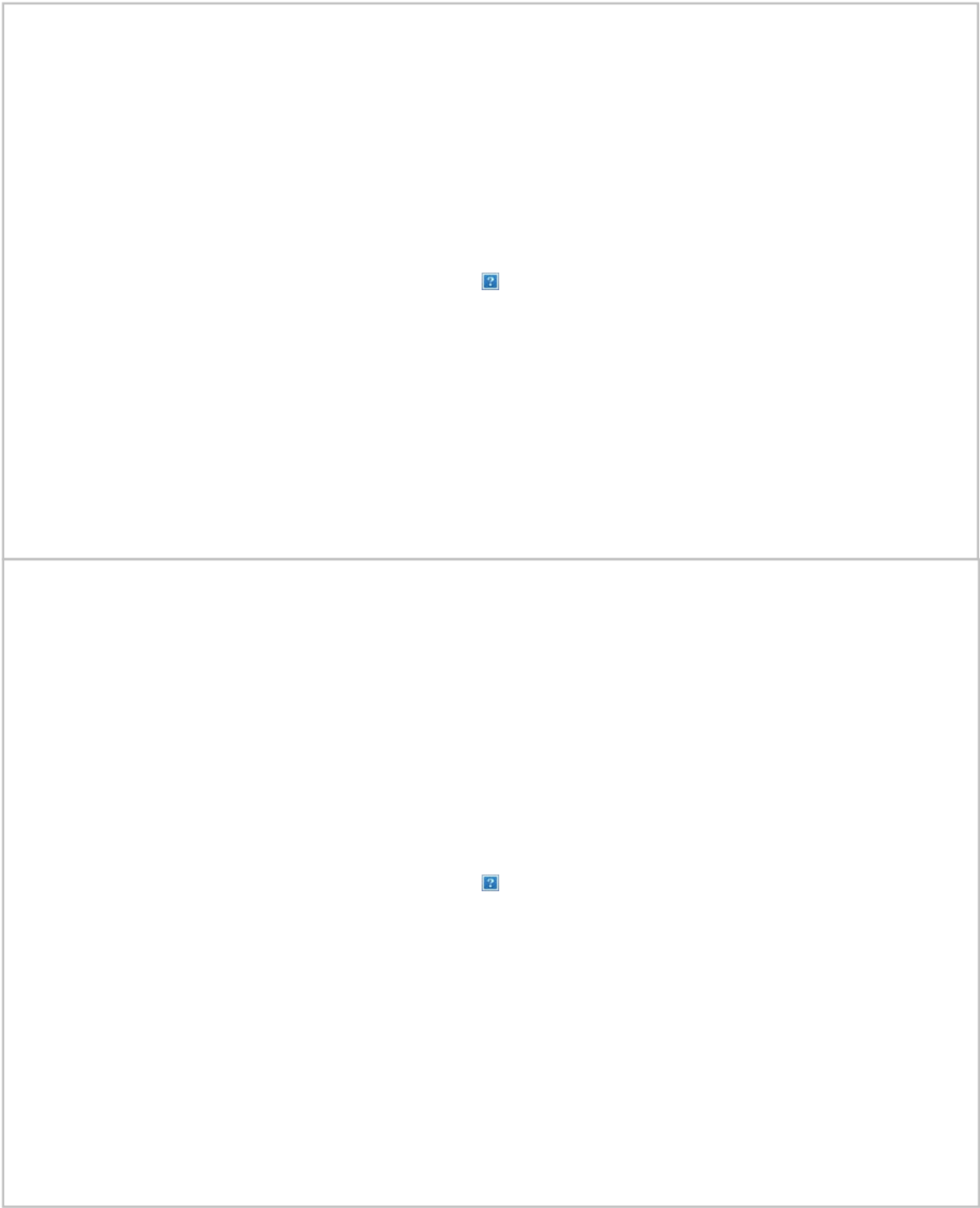
Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.scexpress.com>

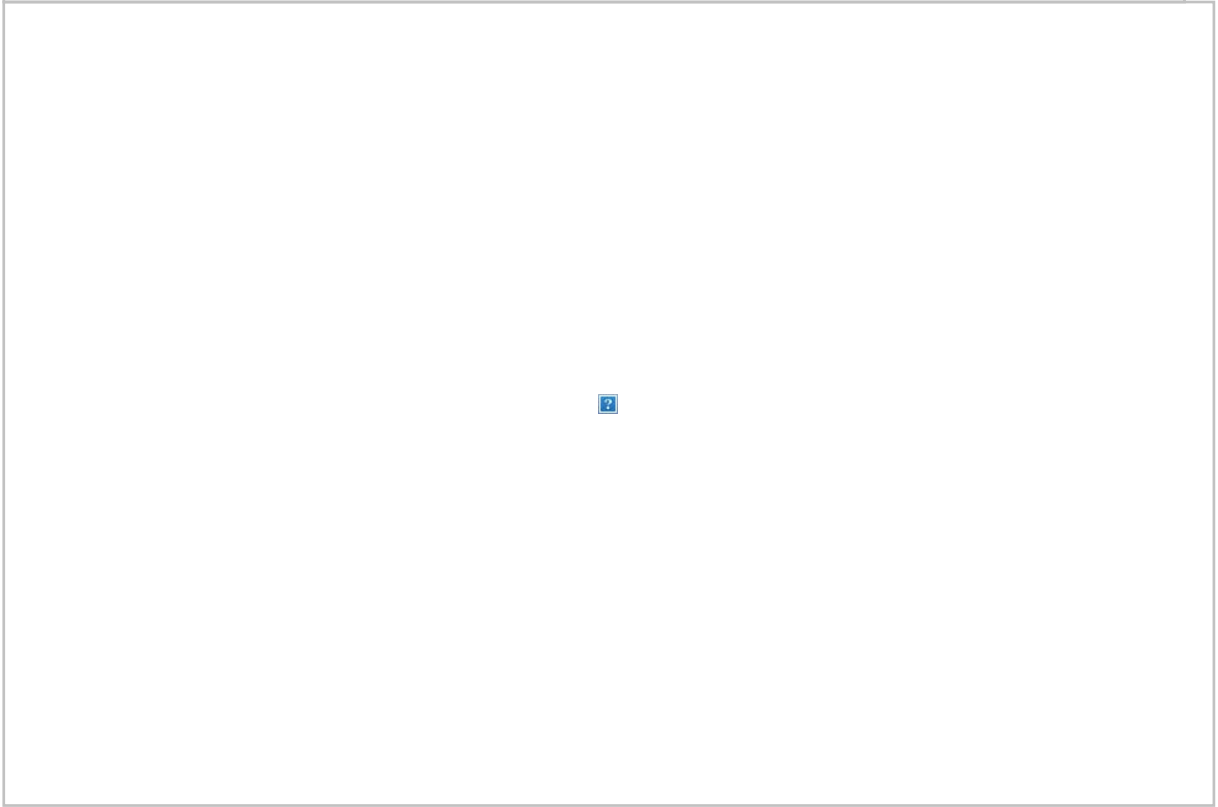
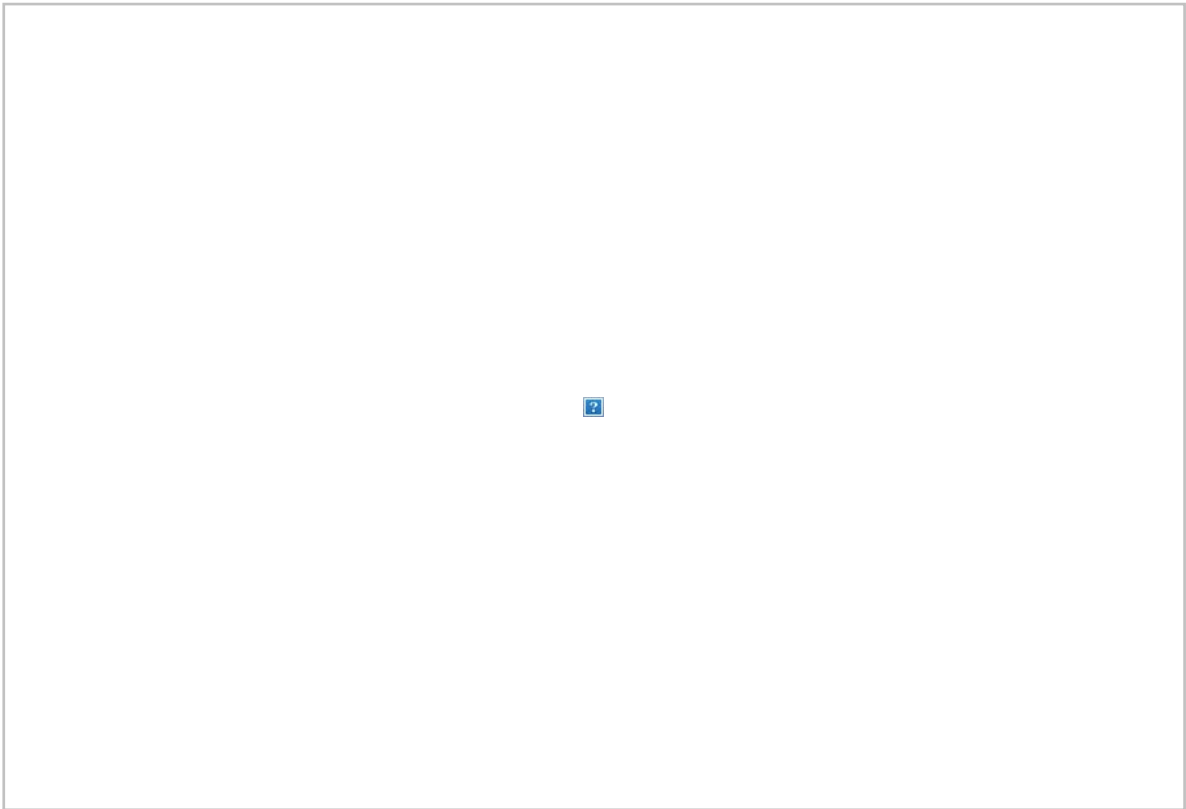
From: ytilayardocu <ytilayardocu@yti.com>
Sent: Tuesday, October 8, 2019 10:15 AM
To: Cesar Garcia <CGarcia@scexpress.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>
Cc: Salvador Aguilar <salvador@scexpress.com>
Subject: RE: EMPTIES ON PER DIEM
Please see below for empty appointment availability for the below listed

containers.











Kind Regards,
Julie Drinnon Yard Dept
Yusen Terminals, Inc
Ph: 310.548.8209
Fax: 310.548.7175

From: Cesar Garcia <CGarcia@scexpress.com>

Sent: Tuesday, October 8, 2019 10:07 AM

To: ytilayardocu <[yti.com](mailto:ytilayardocu@yti.com)>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>

Cc: Salvador Aguilar <salvador@scexpress.com>

Subject: RE: EMPTIES ON PER DIEM

EXTERNAL EMAIL: Do not click any links or open any attachments unless you trust the sender and know the content is safe.

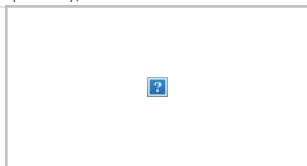
10am for these containers?

CONTAINER	SIZE	LFD
NYKU9917685	20 STD	9/11/2019
NYKU0726482	40HC	9/16/2019
TCLU9811202	40HC	9/17/2019
TCLU8238056	40HC	9/21/2019
KKFU8104859	40HC	9/24/2019
TCLU4857284	40HC	9/24/2019
TLLU5690728	40HC	9/28/2019
TEMU4597219	20 STD	9/28/2019
TCLU4665487	40 STD	9/30/2019

NYKU5214534	40HC	9/30/2019
TCLU9720397	40HC	9/30/2019
TCNU4412953	40HC	9/30/2019
GESU6850011	40HC	9/30/2019
KKFU7980158	40HC	9/30/2019
TCNU7459240	40HC	9/30/2019
TCLU9639412	40HC	10/1/2019
TCLU7809417	40HC	10/1/2019
TLLU5510929	40HC	10/1/2019
ONEU0139040	40HC	10/1/2019
NYKU5144268	40HC	10/1/2019
NYKU5259375	40HC	10/1/2019
TCLU4868416	40HC	10/1/2019
TCLU7822928	40HC	10/1/2019
MOFU1427640	40 STD	10/2/2019
NYKU4729854	40 STD	10/2/2019
NYKU3329914	20 STD	10/2/2019
KKTU7954770	20 STD	10/2/2019
TEMU8227022	40HC	10/2/2019
TLLU5609064	40HC	10/2/2019
SEGU5893688	45	10/4/2019
DRYU6013815	40HC	10/4/2019
CAIU9525080	40HC	10/4/2019
TEMU8009669	45	10/4/2019
TLLU5538443	40HC	10/4/2019
KKFU7827914	40HC	10/4/2019
TCNU7116024	40HC	10/4/2019
SEGU5859430	40HC	10/4/2019
NYKU4046312	40HC	10/4/2019
TCKU4393972	40 STD	10/4/2019
TLLU6128124	40 STD	10/4/2019
FDCU0595892	40HC	10/4/2019
TCLU8859963	40HC	10/4/2019
NYKU4957108	40HC	10/4/2019
TCNU9486331	40HC	10/4/2019
ONEU0028540	40HC	10/4/2019
KKFU7800889	40HC	10/4/2019
FDCU0480050	40HC	10/4/2019
TCNU3088161	40HC	10/5/2019
DRYU9376835	40HC	10/5/2019
FSCU9847274	40HC	10/5/2019
BSIU9691549	40HC	10/5/2019
NYKU4147750	40HC	10/5/2019
TCKU4622024	40 STD	10/5/2019
TCKU4617882	40 STD	10/5/2019
MOFU5899157	40 STD	10/5/2019
GCXU5189918	40 STD	10/5/2019
SEGU4459316	40HC	10/5/2019
FDCU0448417	40HC	10/5/2019
TRLU6517298	40HC	10/5/2019
BEAU4628918	40HC	10/5/2019
KKFU8014673	40HC	10/5/2019
DRYU9970180	40HC	10/5/2019
TRLU7605752	40HC	10/5/2019
FDCU0594900	40HC	10/5/2019
BSIU9694893	40HC	10/5/2019
ONEU0113997	40HC	10/5/2019
TCLU5768751	40HC	10/5/2019
TCNU5976644	40HC	10/5/2019
UETU5737780	40HC	10/5/2019
TEMU8730551	40HC	10/5/2019
NYKU5262954	40HC	10/5/2019
FDCU0639120	40HC	10/7/2019
TLLU5448083	40HC	10/7/2019
KKFU7530130	40HC	10/7/2019
FDCU0546753	40HC	10/7/2019
DRYU4276216	40 STD	10/7/2019
TCLU8569060	40HC	10/7/2019
MOFU5883989	40 STD	10/7/2019
DRYU6029745	40HC	10/7/2019
TCLU1644351	40HC	10/7/2019

KKFU8124789	40HC	10/7/2019
TRLU6490469	40 STD	10/7/2019
TCNU4444117	40HC	10/7/2019
DRYU4077981	40HC	10/7/2019
NYKU4131749	40HC	10/7/2019
ONEU0199202	40HC	10/7/2019
ONEU0051806	40HC	10/7/2019
FDCU0586313	40HC	10/7/2019
TCLU7862540	40HC	10/7/2019
NYKU5152812	40HC	10/7/2019
UETU5737034	40HC	10/7/2019
FCIU8370613	40HC	10/7/2019
CAIU9886782	40HC	10/7/2019
FSCU4781430	40 STD	10/7/2019
TRLU7586760	40 STD	10/7/2019
CAIU9503142	40HC	10/7/2019
TCKU4322623	40 STD	10/7/2019
MOFU0645118	40 STD	10/7/2019
NYKU4311838	40HC	10/7/2019
DRYU4277228	40 STD	10/7/2019
KKFU7619926	40HC	10/7/2019
NYKU4153202	40HC	10/7/2019
NYKU4191990	40HC	10/7/2019
TCLU4618079	40HC	10/7/2019
ONEU0072840	40HC	10/7/2019
BEAU5280447	40HC	10/8/2019
TCLU4711406	40HC	10/8/2019
MOFU6748704	40 STD	10/8/2019
TCLU1677904	40HC	10/8/2019
UETU4033750	40 STD	10/8/2019
TLLU4007210	40HC	10/8/2019
TLLU5717541	40HC	10/8/2019
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TLLU5579680	40HC	10/8/2019
TLLU5473471	40HC	10/8/2019
TCLU9440117	40HC	10/8/2019
TTNU5313310	40 STD	10/8/2019
NYKU5180080	40HC	10/8/2019
TCLU9424029	40HC	10/8/2019
TCLU1641898	40HC	10/8/2019
TLLU5663759	40HC	10/8/2019
TCLU9192290	40 STD	10/8/2019
TEMU8005067	45	10/8/2019
KKFU7861605	40HC	10/8/2019
SEGU5050317	40HC	10/8/2019
UETU5846694	40HC	10/8/2019
FDCU0640836	40HC	10/8/2019

Respectfully,



Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
 18020 South Santa Fe Avenue
 Rancho Dominguez, CA 90221
 (310) 900-2160
<http://www.scexpress.com>

From: ytilayardocu <ytilayardocu@yti.com>

Sent: Tuesday, October 8, 2019 10:01 AM

To: Cesar Garcia <CGarcia@scexpress.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>

Cc: Salvador Aguilar <salvador@scexpress.com>

Subject: RE: EMPTIES ON PER DIEM

Dear Cesar,

There is a 10 am appointment. Please secure it ASAP.



Kind Regards,

Julie Drinnon Yard Dept

Yusen Terminals, Inc

Ph: 310.548.8209

Fax: 310.548.7175

From: Cesar Garcia <CGarcia@scexpress.com>

Sent: Tuesday, October 8, 2019 9:43 AM

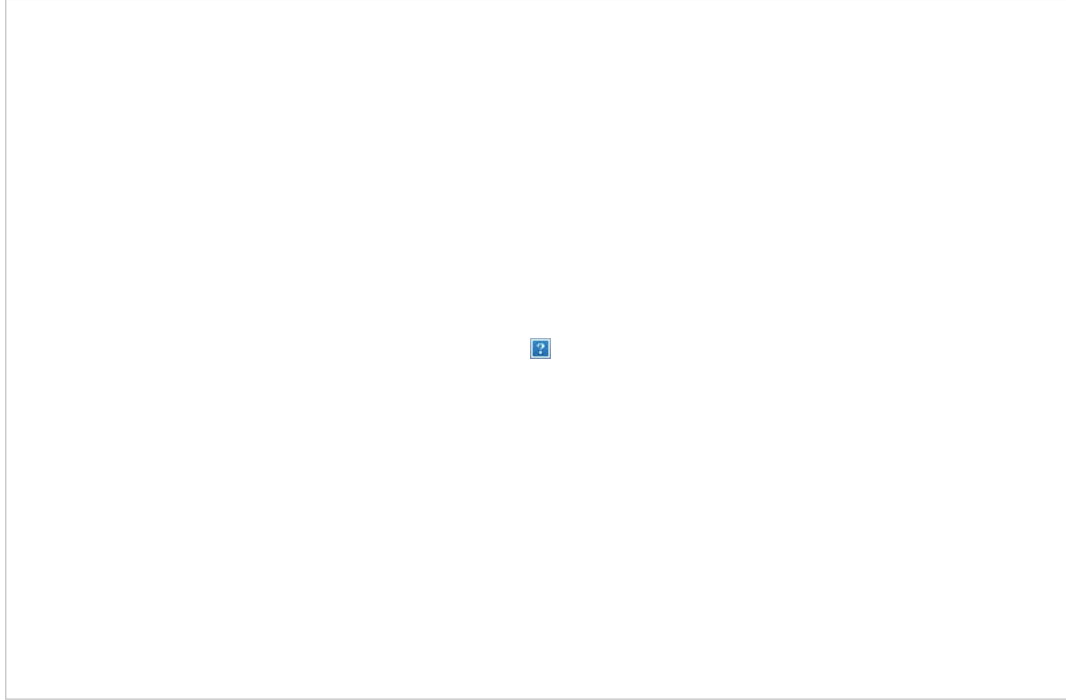
To: ytilayardocu <ytilayardocu@yti.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>

Cc: Salvador Aguilar <salvador@scexpress.com>

Subject: RE: EMPTIES ON PER DIEM

EXTERNAL EMAIL: Do not click any links or open any attachments unless you trust the sender and know the content is safe.

As you can see on the screenshot below, it is 9:40am and all slots are full. No appointments available. SCE will not be responsible for any per diem.



Respectfully,



Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.sc-express.com>

From: ytilayardocu <ytilayardocu@yti.com>

Sent: Tuesday, October 8, 2019 9:35 AM

To: Cesar Garcia <CGarcia@scexpress.com>; 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>

Subject: RE: EMPTIES ON PER DIEM

Good Morning,

There are some appointments available this morning. Please book these slots

ASAP. Thank you.

Kind Regards,

Julie Drinnon Yard Dept

Yusen Terminals, Inc

Ph: 310.548.8209

Fax: 310.548.7175

From: Cesar Garcia <CGarcia@scexpress.com>

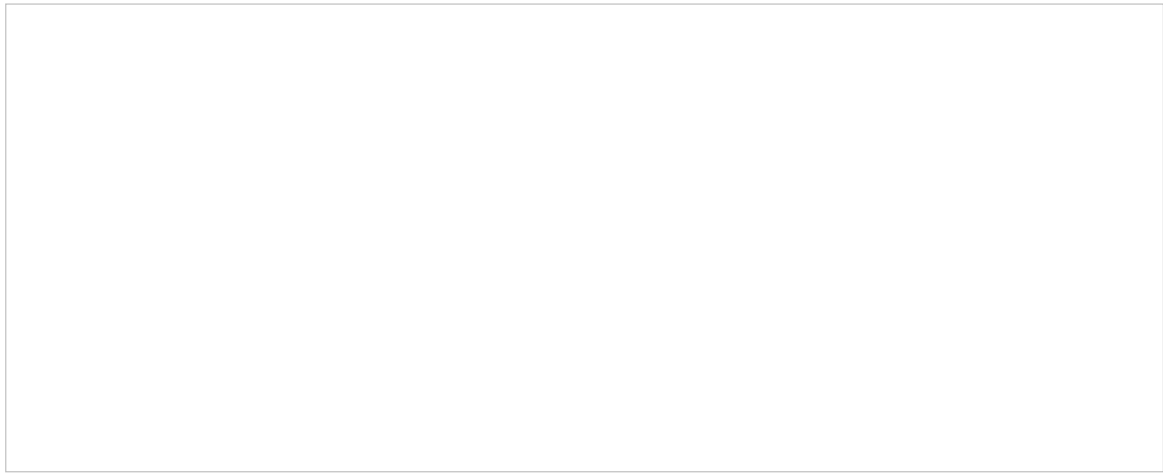
Sent: Tuesday, October 8, 2019 9:07 AM

To: 'NA EQCSouthWest' <na.eqcsouthwest@one-line.com>; ytilayardocu <ytilayardocu@yti.com>

Subject: RE: EMPTIES ON PER DIEM

EXTERNAL EMAIL: Do not click any links or open any attachments unless you trust the sender and know the content is safe.

When we checked they were fully booked.



Respectfully,



Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.scexpress.com>

From: NA EQCSouthWest <na.eqcsouthwest@one-line.com>
Sent: Tuesday, October 8, 2019 8:53 AM
To: Cesar Garcia <CGarcia@scexpress.com>; ytilayardocu <ytilayardocu@yti.com>
Subject: Re: EMPTIES ON PER DIEM
Cesar,
YTI still has appointments

Thank you,

Jay

Equipment Control – Pacific Southwest (Los Angeles, Long Beach, Oakland, Phoenix)

***For empty return and empty pick up locations, please refer to <http://www.returnlocation.com/>

****Please note, equipment inventory levels are subject to change and ONE cannot guarantee equipment will be available when attempting to pick up an empty****

Ocean Network Express (North America) Inc.

[377 Butterfield Rd.](#)

[Lombard, IL 60148](#)

Operations Center: 1-866-437-3670

Operations Center Equipment Control Pacific Southwest Team: 1-866-437-3670 ext 3 5

www.one-line.com

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On Tue, Oct 8, 2019 at 10:49 AM Cesar Garcia <CGarcia@scexpress.com> wrote:

As many as we can yes. Can you exempt them for our customers?

Respectfully,



Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.scexpress.com>

From: NA EQCSouthWest <na.eqcsouthwest@one-line.com>
Sent: Tuesday, October 8, 2019 8:44 AM
To: Cesar Garcia <CGarcia@scexpress.com>
Subject: Re: EMPTIES ON PER DIEM
Cesar,
Returning all these today?

Thank you,

Jay

Equipment Control – Pacific Southwest (Los Angeles, Long Beach, Oakland, Phoenix)

***For empty return and empty pick up locations, please refer to <http://www.returnlocation.com/>

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On Tue, Oct 8, 2019 at 10:38 AM Cesar Garcia <CGarcia@scexpress.com> wrote:

One,

We really need to find a home for empties, can you help us exempt these containers? They are on per diem. YTI does not have appointments.

CONTAINER	SIZE	LFD
NYKU9917685	20 STD	9/11/2019
NYKU0726482	40HC	9/16/2019
TCLU9811202	40HC	9/17/2019
TCLU8238056	40HC	9/21/2019
KKFU8104859	40HC	9/24/2019
TCLU4857284	40HC	9/24/2019
TLLU5690728	40HC	9/28/2019
TEMU4597219	20 STD	9/28/2019
TCLU4665487	40 STD	9/30/2019
NYKU5214534	40HC	9/30/2019
TCLU9720397	40HC	9/30/2019
TCNU4412953	40HC	9/30/2019
GESU6850011	40HC	9/30/2019
KKFU7980158	40HC	9/30/2019
TCNU7459240	40HC	9/30/2019
TCLU9639412	40HC	10/1/2019
TCLU7809417	40HC	10/1/2019
TLLU5510929	40HC	10/1/2019
ONEU0139040	40HC	10/1/2019
NYKU5144268	40HC	10/1/2019
NYKU5259375	40HC	10/1/2019
TCLU4868416	40HC	10/1/2019
TCLU7822928	40HC	10/1/2019
MOFU1427640	40 STD	10/2/2019
NYKU4729854	40 STD	10/2/2019
NYKU3329914	20 STD	10/2/2019
KKTU7954770	20 STD	10/2/2019
TEMU8227022	40HC	10/2/2019
TLLU5609064	40HC	10/2/2019
SEGU5893688	45	10/4/2019
DRYU6013815	40HC	10/4/2019
CAIU9525080	40HC	10/4/2019
TEMU8009669	45	10/4/2019
TLLU5538443	40HC	10/4/2019
KKFU7827914	40HC	10/4/2019
TCNU7116024	40HC	10/4/2019
SEGU5859430	40HC	10/4/2019
NYKU4046312	40HC	10/4/2019
TCKU4393972	40 STD	10/4/2019

TLLU6128124	40 STD	10/4/2019
FDCU0595892	40HC	10/4/2019
TCLU8859963	40HC	10/4/2019
NYKU4957108	40HC	10/4/2019
TCNU9486331	40HC	10/4/2019
ONEU0028540	40HC	10/4/2019
KKFU7800889	40HC	10/4/2019
FDCU0480050	40HC	10/4/2019
TCNU3088161	40HC	10/5/2019
DRYU9376835	40HC	10/5/2019
FSCU9847274	40HC	10/5/2019
BSIU9691549	40HC	10/5/2019
NYKU4147750	40HC	10/5/2019
TCKU4622024	40 STD	10/5/2019
TCKU4617882	40 STD	10/5/2019
MOFU5899157	40 STD	10/5/2019
GCXU5189918	40 STD	10/5/2019
SEGU4459316	40HC	10/5/2019
FDCU0448417	40HC	10/5/2019
TRLU6517298	40HC	10/5/2019
BEAU4628918	40HC	10/5/2019
KKFU8014673	40HC	10/5/2019
DRYU9970180	40HC	10/5/2019
TRLU7605752	40HC	10/5/2019
FDCU0594900	40HC	10/5/2019
BSIU9694893	40HC	10/5/2019
ONEU0113997	40HC	10/5/2019
TCLU5768751	40HC	10/5/2019
TCNU5976644	40HC	10/5/2019
UETU5737780	40HC	10/5/2019
TEMU8730551	40HC	10/5/2019
NYKU5262954	40HC	10/5/2019
FDCU0639120	40HC	10/7/2019
TLLU5448083	40HC	10/7/2019
KKFU7530130	40HC	10/7/2019
FDCU0546753	40HC	10/7/2019
DRYU4276216	40 STD	10/7/2019
TCLU8569060	40HC	10/7/2019
MOFU5883989	40 STD	10/7/2019
DRYU6029745	40HC	10/7/2019
TCLU1644351	40HC	10/7/2019
KKFU8124789	40HC	10/7/2019
TRLU6490469	40 STD	10/7/2019
TCNU4444117	40HC	10/7/2019
DRYU4077981	40HC	10/7/2019
NYKU4131749	40HC	10/7/2019
ONEU0199202	40HC	10/7/2019
ONEU0051806	40HC	10/7/2019
FDCU0586313	40HC	10/7/2019
TCLU7862540	40HC	10/7/2019
NYKU5152812	40HC	10/7/2019
UETU5737034	40HC	10/7/2019
FCIU8370613	40HC	10/7/2019
CAIU9886782	40HC	10/7/2019
FSCU4781430	40 STD	10/7/2019
TRLU7586760	40 STD	10/7/2019
CAIU9503142	40HC	10/7/2019
TCKU4322623	40 STD	10/7/2019
MOFU0645118	40 STD	10/7/2019
NYKU4311838	40HC	10/7/2019
DRYU4277228	40 STD	10/7/2019
KKFU7619926	40HC	10/7/2019
NYKU4153202	40HC	10/7/2019
NYKU4191990	40HC	10/7/2019
TCLU4618079	40HC	10/7/2019
ONEU0072840	40HC	10/7/2019
BEAU5280447	40HC	10/8/2019
TCLU4711406	40HC	10/8/2019
MOFU6748704	40 STD	10/8/2019
TCLU1677904	40HC	10/8/2019
UETU4033750	40 STD	10/8/2019

TLLU4007210	40HC	10/8/2019
TLLU5717541	40HC	10/8/2019
TEMU7867025	40HC	10/8/2019
TLLU5579680	40HC	10/8/2019
TLLU5473471	40HC	10/8/2019
TCLU9440117	40HC	10/8/2019
TTNU5313310	40 STD	10/8/2019
NYKU5180080	40HC	10/8/2019
TCLU9424029	40HC	10/8/2019
TCLU1641898	40HC	10/8/2019
TLLU5663759	40HC	10/8/2019
TCLU9192290	40 STD	10/8/2019
TEMU8005067	45	10/8/2019
KKFU7861605	40HC	10/8/2019
SEGU5050317	40HC	10/8/2019
UETU5846694	40HC	10/8/2019
FDCU0640836	40HC	10/8/2019

Respectfully,

Cesar Garcia
CGarcia@scexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
 18020 South Santa Fe Avenue
 Rancho Dominguez, CA 90221
 (310) 900-2160
<http://www.scexpress.com>

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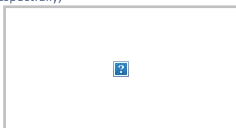
From: Cesar Garcia
To: "NA OFS Truck Det"
Cc: Karen Ford; Aronda Armstead; Scott Booker; Maricel Exiomo; NA Collections; UIIA Issues
Subject: RE: KCL_DET_NEED OF PAYMENT_SOUTHERN COUNTIES EXPRESS_wk43
Attachments: image001.png

Krishna,

See below responses in red, UIIA in copy. If you would like for us to submit for arbitration.. let us know and we will file the claims with the UIIA.

Invoice No	Balance	Comment	Reason of Disputes
UST138025	\$ 150.00	As per checking the calendar provided by Ops team, there were multiple single transaction dates within the range of free time. Please advise why did you not return the container on these dates.	no appt's to receive empty. Will not be paid.
UST139290	\$ 560.00	Per OPS team calendar, No dual transaction from the date container was out. Terminal was open for single transaction between the range of the free time from 2019-03-11 to 2019-03-14. Please coordinate with your customer sales rep internally if mitigation request will be grant.	no appt's to receive empty. Will not be paid.
UST139286	\$ 560.00	Per OPS team calendar, No dual transaction from the date container was out. Terminal was open for single transaction between the range of the free time from 2019-03-11 to 2019-03-14. Please coordinate with your customer sales rep internally if mitigation request will be grant.	no appt's to receive empty. Will not be paid.
UST139284	\$ 560.00	Per OPS team calendar, No dual transaction from the date container was out. Terminal was open for single transaction between the range of the free time from 2019-03-11 to 2019-03-14. Please coordinate with your customer sales rep internally if mitigation request will be grant.	no appt's to receive empty. Will not be paid.
UST139281	\$ 560.00	Per OPS team calendar, No dual transaction from the date container was out. Terminal was open for single transaction between the range of the free time from 2019-03-08 to 2019-03-13. Please coordinate with your customer sales rep internally if mitigation request will be grant.	no appt's to receive empty. Will not be paid.
UST141583	\$ 420.00	As per checking the calendar provided by Ops team, there were multiple single transaction dates within the range of free time. Please advise why did you not return the container on these dates.	no appt's to receive empty. Will not be paid.
UST141539	\$ 300.00	email sent to NA EQCDATAINTEGRITY for confirmation of correct out-gate date as per trucker dispute	disputed not valid, will not be paid
UST163929	\$ 1,820.00	Please be advised that this is under CY move. Trucker should have a copy of TIR. Kindly coordinate with your customer internally for any proof since they are the one who nominated you as the trucker. ONE's responsibility is up to the terminal only.	SCE IS NOT PAYING AN INVOICE FOR A CONTAINER THAT DOES NOT BELONG TO SCE. SCE DOES NOT KNOW WHO THIS CUSTOMER IS...
UST187199	\$ 50.00		SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST203857	\$ 420.00	Regarding appointments, they posted 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST208522	\$ 420.00	Regarding appointments, they posted 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST215432	\$ 420.00	Regarding appointments, they post 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST216358	\$ 420.00	Regarding appointments, they post 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST216357	\$ 420.00	Regarding appointments, they post 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.
UST216124	\$ 280.00	Regarding appointments, they post 4 shifts on returnlocation.com so the trucker can plan ahead and secure appointments and return empties. If there are no appointments during the time the trucker is looking for an appointment, they need to continue to keep checking as appointments do become available during the day.	SHOW US THE SECTION OF THE UIIA WHERE IT STATES THAT THE TRUCKER IS RESPONSIBLE TO KEEP CHECKING WEBSITES FOR APPOINTMENTS WHEN WE ARE UNABLE TO SECURE AN APPOINTMENT. INVOICE NOT VALID AND WILL NOT BE PAID IF WE ARE UNABLE TO TERMINATE.

Respectfully,



Cesar Garcia
CGarcia@sceexpress.com
SOUTHERN COUNTIES EXPRESS, INC.
18020 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.sceexpress.com>

From: NA OFS Truck Det
Sent: Tuesday, October 22, 2019 10:09 AM
To: Cesar Garcia ; Febe Campa
Cc: Karen Ford ; Aronda Armstead ; Scott Booker ; Maricel Exiomo ; NA Collections
Subject: KCL_DET_NEED OF PAYMENT_SOUTHERN COUNTIES EXPRESS_wk43

Hello,

Good day! Please see attached copy of the updated statement for your reference. Kindly review and process it for payment within this week. If there is any dispute kindly advice in details. (Nature of disputes, invoice & BL#, back up docs needed) or kindly input the comments in the spreadsheet and send it back to us. Appreciate your quick response on this. Thank you.

Please acknowledge receipt of this email.

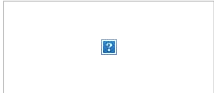
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****Moving forward,please send your Trucker's Detention inquiries to na ofs.Truck.Det@one-line.com****

Krishna Lomboy
NA F&A Detention and Demurrage Collection - Associate



Ocean Network Express (North America) Ltd.
na ofs.truck@one-line.com
www.us.one-line.com
571-258-4072 ext. 41289



REGULAR MAIL CHECK	WIRE/EFT	ACH PAYMENT
For US Payments: Ocean Network Express PTE. Ltd. 8730 Stony Point Parkway Suite 400 Richmond VA 23235	For US Payments: ABA# 021001088 Account #: 000274666 Swift Code: MRMDUS33 HSBC Bank USA NA 452 fifth Ave New York, NY 10018	ABA# : 022000020 Account # : 000274666 Swift Code: MRMDUS33 HSBC Bank USA NA 452 fifth Ave New York, NY 10018
For CA Payments: Ocean Network Express PTE. Ltd. 5090 Explorer Drive, Suite 802 Mississauga, Ontario,L4W 4T9	For CA Payments: Swift Code: HKBCCATT Account #: 002-843390-070 HSBC Bank Canada 70 york Street Toronto, Ontatio M5J1S9 USD Correspondent Bank:	

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From: Cesar Garcia
To: "NA EQCSouthWest"; Oscar Caballero
Cc: NA WESTCOAST REEFEROPS; Equip_Control; UIIA Issues
Subject: RE: ONE - VERY LIMITED APPOINTMENTS AT YTI 10/9
Date: Wednesday, October 9, 2019 12:50:06 PM
Attachments: image001.png

Per diem is being waived correct? What you can will not work for SCE or our customers.

UIIA in copy
Respectfully,



Cesar Garcia
Southern Express, Inc.
SOUTHERN COUNTRIES EXPRESS, INC.
38029 South Santa Fe Avenue
Rancho Dominguez, CA 90221
(310) 900-2160
<http://www.sceexpress.com>

From: NA EQCSouthWest
Sent: Wednesday, October 9, 2019 9:39 AM
To: Oscar Caballero
Cc: NA WESTCOAST REEFEROPS; Equip_Control
Subject: Re: ONE - VERY LIMITED APPOINTMENTS AT YTI 10/9
Oscar,
Please schedule what you can.
Thank you,
Jay

Equipment Control – Pacific Southwest (Los Angeles, Long Beach, Oakland, Phoenix)

***For empty return and empty pick up locations, please refer to <http://www.returnlocation.com/>

****Please note, equipment inventory levels are subject to change and ONE cannot guarantee equipment will be available when attempting to pick up an empty****

Ocean Network Express (North America) Inc.

377 Butterfield Rd.

Lombard, IL 60148

Operations Center: 1-866-437-3670
Operations Center Equipment Control Pacific Southwest Team: 1-866-437-3670 ext 3 5

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On Wed, Oct 9, 2019 at 11:28 AM Oscar Caballero <OCaballero@sceexpress.com> wrote:

ONE,

Please note there is very LIMITED appointments at YTI for today. Per your broadcast/website, we are to return them there 1st shift.

Please **stop the clock** on all below units as **SCE will not be responsible** for any per diem.

TRAILER	OWNER	SIZE
NYKU3753748	ONE	20 STD
TEMU4597219	ONE	20 STD
NYKU9917685	ONE	20 STD
TCLU3568332	ONE	20 STD
TCLU7565985	ONE	20 STD
TCLU3851189	ONE	20 STD
MOAU0626440	ONE	20 STD
TLLU6128124	one	40 STD
TLLU6020485	ONE	40 STD
TCLU6550559	ONE	40 STD
TCLU4658786	ONE	40 STD
DRYU4276216	ONE	40 STD
TCKU4617882	ONE	40 STD
MOFU6813815	ONE	40 STD
MOFU0752918	ONE	40 STD
NYKU8520271	one	40 STD
DRYU4087146	one	40 STD
TCKU4622024	ONE	40 STD
UETU4033750	ONE	40 STD
TCLU9192290	ONE	40 STD
DRYU4138789	ONE	40 STD
UETU4059631	ONE	40 STD
DRYU4277228	ONE	40 STD
MOFU6803123	ONE	40 STD
NYKU8368446	ONE	40 STD
MOFU6747478	ONE	40 STD
TCLU9399142	ONE	40 STD
MOFU0645118	ONE	40 STD
KKFU1857249	ONE	40 STD
FSCU4606642	ONE	40 STD
DFSU4374830	ONE	40 STD
FDCU0359583	ONE	40 STD
FSCU4781430	ONE	40 STD
MOTU0626180	ONE	40 STD
MOFU5847209	ONE	40 STD
KKFU1060527	ONE	40 STD
KKFU1405573	ONE	40 STD
TLLU6101150	ONE	40 STD
TRLU4844877	ONE	40 STD
TRLU9507544	ONE	40 STD
UETU4028061	ONE	40 STD
DFSU4378374	ONE	40 STD
MOFU5883989	ONE	40 STD
MOFU6748704	ONE	40 STD
TCLU4224460	ONE	40 STD
TCLU6423271	ONE	40 STD
TLLU1611696	ONE	40 STD
TLLU5585810	ONE	40 STD
UETU4141035	ONE	40 STD
TCNU5520850	ONE	40 STD
TCKU4322623	ONE	40 STD
TTNU5313310	ONE	40 STD
TLLU6031704	ONE	40 STD

TLLU6110655	ONE	40 STD
TTNU4868571	ONE	40 STD
TRLU9513022	ONE	40 STD
NYKU0726482	ONE	40HC
TCLU9811202	ONE	40HC
TCLU8859963	ONE	40HC
TGHU6460633	ONE	40HC
TEMU8721420	ONE	40HC
KKFU8104859	ONE	40HC
TCLU4589582	ONE	40HC
TCLU9639412	ONE	40HC
TCLU7809417	ONE	40HC
NYKU5144268	ONE	40HC
NYKU5259375	ONE	40HC
TCKU9194417	ONE	40HC
FDCU0512199	ONE	40HC
NYKU0754951	ONE	40HC
TCNU6614193	ONE	40HC
TEMU7368242	ONE	40HC
NYKU4810502	ONE	40HC
TCNU3942455	ONE	40HC
NYKU4935942	ONE	40HC
TCNU8307724	ONE	40HC
TLLU5537370	ONE	40HC
TCLU8569960	ONE	40HC
TCNU6710316	ONE	40HC
DRYU9870180	ONE	40HC
NYKU14191990	ONE	40HC
TEMU8730551	ONE	40HC
ONEU0113997	ONE	40HC
KKFU7530130	ONE	40HC
TCNU4444117	ONE	40HC
MOTU1423866	ONE	40HC
TCLU4711406	ONE	40HC
DRYU4077981	ONE	40HC
FDCU0546753	ONE	40HC
NYKU5180080	ONE	40HC
TLLU5448083	ONE	40HC
TCLU4618079	ONE	40HC
TLLU4007210	ONE	40HC
TCLU8533426	ONE	40HC
ONEU0199202	ONE	40HC
CAIU9503142	ONE	40HC
TLLU5717541	ONE	40HC
TEMU7867025	ONE	40HC
TLLU4221109	ONE	40HC
TCLU7862540	ONE	40HC
TCLU5768751	ONE	40HC
KKFU7800889	ONE	40HC
TGBU5318812	ONE	40HC
TCLU1641898	ONE	40HC
TCNU7103665	ONE	40HC
ONEU0072840	ONE	40HC
TCNU4871588	ONE	40HC
NYKU5262954	ONE	40HC
TLLU5446100	ONE	40HC
BSIU9597044	ONE	40HC
TLLU5719760	ONE	40HC
NYKU4226905	ONE	40HC
TLLU5600832	ONE	40HC
TCLU9440117	ONE	40HC
NYKU5284193	ONE	40HC
TLLU5492722	ONE	40HC
TLLU4205556	ONE	40HC
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TCLU9338980	ONE	40HC
TEMU8009669	ONE	45
TEMU8005067	ONE	45
KKFU9144898	ONE	45

Best Regards,



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